

filings, all requirements of Code of Civil Procedure section 1285 et seq. appear to have been satisfied. The Court therefore **grants** the Petition, confirming the Final Award of \$196,889.40 plus interest.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-02215

CASE NAME: ROBERT VARAO VS. MATTHEW TINDALL

***HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF DEFENDANT MATTHEW A. TINDALL**

FILED BY: VARAO, ROBERT E.

TENTATIVE RULING:

Plaintiff Robert Varao seeks to compel the deposition of Defendant Matthew Tindall. The Court received no timely response.

The un rebutted facts show that Tindall has twice failed to appear for a noticed deposition. Although there were disputes about the scheduling of the first deposition, he agreed to appear for the second. Tindall is in violation of Code of Civil Procedure section 2025.280(a). Pursuant to Code of Civil Procedure section 2025.450(a), the Court will order Tindall to appear for deposition within 10 days of this Order.

Varao also seeks sanctions. Code Civ. Pro. § 2025.450(g)(1). He has provided information sufficient to support the imposition of \$5,079.78 in sanctions, against Defendant Tindall, payable to counsel for Varao within 30 days of this order.

20. 9:01 AM CASE NUMBER: C26-00435

CASE NAME: WHITNEY YAN VS. CHARLES LI

***HEARING ON MOTION FOR DISCOVERY COMPEL APPEARANCE AT TESTIMONY**

FILED BY: LI, CHARLES

TENTATIVE RULING:

Defendant Charles Li seeks to compel Plaintiff Whitney Yan's deposition. Plaintiff Yan argues that the motion be denied because Yan has not refused to be deposed, but cannot be deposed at this time due to illness.

Li's briefing contains substantial information about other individuals and other cases. This documentation is all hearsay and will not be considered on this Motion. While the Court is sensitive to medical issues, Li correctly identifies that Yan's note from his oncologist is unsigned and additionally does not explain why Yan cannot participate in a remote deposition. Nor does the note give a time frame during which Yan is actively in chemotherapy. Yan argues that written discovery could accomplish the same goals. This argument both contradicts Yan's premise that he is *not* refusing to appear for deposition, and ignores that Li is entitled to proceed reasonably through all appropriate forms of discovery in whichever order he deems proper.

In light of all of these issues, the Court will **grant** Li's motion with the following parameters: (1) Yan is entitled to appear for deposition remotely, as long as counsel for Yan is also on camera; (2) Yan is entitled to take frequent breaks or have shortened sessions; and (3) any additional medical restrictions must be specified in a signed note from a doctor. Yan must sit for the first portion of the deposition within 30 days.

**Law & Motion
Add On**

21. 9:00 AM CASE NUMBER: N25-1239
CASE NAME: ALEXANDER CAINE VS. DOES 1-20, INCLUSIVE.
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:
TENTATIVE RULING:

INTRODUCTION

Before the Court is Petitioner ALEXANDER CAINE's ("Petitioner") Petition for Writ of Mandate to rescind the Letter of Reprimand he received in October 2024, stemming from the apprehension of a suspect that occurred on March 20, 2023.

Petitioner's sole theory is that the Department failed to comply with Government Code section 3304, subdivision (d)(1), which bars punitive action if the investigation is not completed within one year of the public agency's discovery, by a person authorized to initiate an investigation, of the allegation or misconduct. That argument turns on fact questions: when the agency discovered misconduct and whether a person authorized to initiate an investigation acted with reasonable diligence. (See *Haney v. City of Los Angeles* (2003) 109 Cal.App.4th 1, 8.)

For the following reasons, **Petitioner's Writ of Mandate is granted and the Court orders Respondent to rescind the October 2024 Letter of Reprimand because it is barred by the one-year statute of limitations set out by Government Code section 3304(d)(1).**

FACTUAL BACKGROUND

A. PETITIONER RESPONDS TO AN INCIDENT ON MARCH 20, 2023

During the time periods relevant to this proceeding, Petitioner Caine was a sworn peace officer employed by Respondent City of Richmond ("City") and its Police Department ("Department"). On March 20, 2023, another Richmond Police Officer was making a vehicle stop of a box truck suspected to be stolen. (Resp. Exh. 1, Caine TR at pp. 43:15-46:9.) The suspect, Alexander Medrano, collided with the officer's patrol vehicle, injuring the officer, and attempted to flee on foot. (Id. at 43:15-46:23.) The